



THE HIGH COURT — FULL MIND MAP

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Topics in this chapter:

1. High Court Structure, Judges & Service Conditions
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3. Jurisdiction of High Court & Chief Justice — Administrative Role
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1. High Court Structure, Judges & Service Conditions

- Article 216 ke source framing ke mutabik har High Court mein ek Chief Justice aur utne other Judges hote hain jitne President time-to-time necessary deem kare; judge-strength determine/fix karne ka authority President se linked hai. [Q1]
- Article 217(1): High Court Judge ko President warrant under hand and seal se appoint karta hai. Source Q2 isi appointment rule ko test karta hai. [Q2]
- Article 222: President, Chief Justice of India se consultation ke baad High Court Judge ko ek High Court se doosre High Court transfer kar sakta hai. Source Third Judges Case (1998) mein CJI ke wider consultation/collegium input ka note deta hai. [Q3]
- Article 224: temporary workload/arrears ke liye Additional Judges maximum 2 years ke liye appoint ho sakte hain; permanent judge ke absence/temporary incapacity mein Acting Judge appoint ho sakta hai. Additional/Acting Judge 62 years ke baad office hold nahi karega. [Q4]
- High Court Judges ki salary/allowances State ke Consolidated Fund par charged hain (source Article 202(3)(d)); retired High Court Judge ki pension Consolidated Fund of India se charged batayi gayi hai (Article 112(3)(d)). [Q5, Q6]
- High Court Judge retirement age 62 years hai. Source 15th Constitutional Amendment, 1963 se age 60 se 62 hone aur 114th Amendment Bill, 2010 ke unsuccessful 65-year proposal ka note deta hai. [Q7, Q8]

2. High Courts in India — Number, Common Jurisdiction & Benches

- Source current-reference ke hisab se India mein 25 High Courts batata hai; Part VI, Chapter V, Article 214 ko High Courts se link karta hai. Punjab + Haryana + Chandigarh ka common High Court aur Delhi ka apna High Court source mein stated hai. [Q9]
- Andaman & Nicobar Islands Kolkata (Calcutta) High Court ke territorial jurisdiction mein; Chandigarh Punjab & Haryana HC, Puducherry Chennai HC aur Lakshadweep Kerala HC ke jurisdiction se source map karta hai. [Q12]
- Bombay High Court source ke mutabik Maharashtra, Goa aur specified Union Territories par jurisdiction rakhta hai. UTs exclude karke source three common-State High Courts batata hai: Gauhati, Bombay, aur Punjab & Haryana. [Q13, Q14]
- January 2013 mein Meghalaya, Manipur aur Tripura ke new High Courts establish hue aur March 2013 se function karne lage — source explanation. [Q16]
- Source bench-count question mein Mumbai/Bombay aur Gauhati High Courts ko 3 benches each batakar multiple-correct answer mark karta hai; Kolkata circuit benches aur MP HC ke Indore/Gwalior benches ka bhi note deta hai. [Q17]

3. Jurisdiction of High Court & Chief Justice — Administrative Role

- Advisory jurisdiction source ke mutabik High Court ki main jurisdiction nahi; Article 143 wali advisory jurisdiction Supreme Court se linked hai. [Q18]
- High Court Chief Justice judicial aur administrative dono capacity mein act karta hai. Source kehta hai ki administrative capacity mein Chief Justice kisi other High Court Judge ki writ jurisdiction ke subject ho sakta hai aur lower courts ki supervision/administration karta hai. [Q19]

4. Writ Jurisdiction — Certiorari, Prohibition, Mandamus & Quo Warranto

- Certiorari: superior court lower court ka case-record review ke liye mangwata hai, usually lower-court judgment ko examine/overrule karne ke purpose se; subordinate courts ke functioning ko examine karne wala writ bhi source isi ko batata hai. [Q20, Q22]
- Prohibition: superior court lower court/tribunal ko jurisdiction exceed karne ya unlawful proceeding continue karne se rokta hai. Source ise pending proceeding ke stage par issue hone aur judicial/quasi-judicial bodies tak limited batata hai. [Q21, Q23]
- Mandamus public duty ke context mein private organisation par tab lie kar sakta hai jab public duty entrusted ho; source Government Company ke against mandamus possible batata hai. Quo Warranto ke liye any public-minded person petitioner ho sakta hai. [Q25]
- Article 226 ke under High Court five writs — Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto — Fundamental Rights ke enforcement ke saath “any other purpose”/legal or statutory rights ke liye bhi issue kar sakta hai; Article 32 SC power source mein Fundamental Rights tak framed hai. [Q26, Q27]
- Contempt Assertion–Reason: willful court-order disobedience/non-compliance aur derogatory language contempt ho sakte hain; source marks Assertion aur Reason dono correct, lekin Reason Assertion ka correct explanation nahi. [Q24]

5. Judge Removal, Resignation & Post-Retirement Practice

- Article 217(1)(b): High Court Judge ka removal mode Supreme Court Judge jaisa Article 124(4) manner follow karta hai — source statement 1 correct batata hai. [Q28]
- Article 220: permanent retired High Court Judge India mein Supreme Court aur other High Courts ke saamne plead/act kar sakta hai; “kahin bhi practice nahi kar sakta” statement source mein incorrect hai. [Q28]
- Article 217(1)(a): High Court Judge resignation President ko addressed writing se deta hai. [Q29]
- Justice Soumitra Sen (former Calcutta HC Judge) ke against 2011 mein Rajya Sabha impeachment motion pass hua; source ke mutabik Lok Sabha consideration se pehle unhone 1 September 2011 ko resign kar diya. [Q30]

6. Important High Court Cases, Judges & Law Commission

- Babri Mosque/Ramjanmabhoomi dispute Allahabad High Court ke saamne source ke mutabik Title Suit tha — same land/property par competing claims. [Q31]
- Rahmatullah v. State of U.P. (1994) ko source Allahabad High Court se link karta hai aur triple talaq pronouncement ko illegal batata hai; explanation additionally Muslim Women (Protection of Rights on Marriage) Act, 2019 ka later statutory note deta hai. [Q32]
- Rajeev Gupta 2 February 2008 ko Chhattisgarh High Court ke Chief Justice bane; source batata hai ki isse pehle Uttarakhand HC ke Chief Justice the. [Q33]
- 8th Law Commission ke Chairman Justice H.R. Khanna ki 80th Report “The Method of Appointment of Judges” ne source ke mutabik recommend kiya ki each High Court ke at least one-third Judges other States se hon. [Q34]

7. District Judiciary — Articles 233 & 236

- Article 233 District Judges ke appointment/posting/promotion se linked hai; source Governor ko concerned High Court se consultation ke saath appointment authority batata hai. [Q35, Q37]
- Article 236(a) mein “district judge” expression source ke mutabik city civil court judge, additional/joint/assistant district judge, chief small causes judge, presidency magistrates, sessions/additional/assistant sessions judges etc. include karta hai; Tribunal Judge include nahi. [Q36]
- District Judge district ka highest judicial authority hai aur source ke mutabik judicial + administrative powers ke saath subordinate courts par supervisory powers rakhta hai; Assertion–Reason mein R ko A ka correct explanation mark kiya gaya. [Q37]

8. Advocates, Prisons & Judicial Custody

- Advocates Act, 1961 source ke mutabik single class “advocates” create karta hai; government law officers, legal firms, corporate lawyers aur patent attorneys ko advocates ke roop mein recognise karne ka explanation deta hai. Bar Councils legal education aur law-college recognition rules lay down kar sakte hain. [Q38]
- Prisons / persons detained therein State List Entry 4 se source link karta hai; Prisons Act, 1894 ne day-to-day prison administration States/earlier Provincial Governments ke control mein rakha. Source additionally Model Prisons Act, 2023 ko guiding document batata hai. [Q39]
- Judicial custody = accused concerned Magistrate ki custody mein aur jail mein; police custody mein police-station lock-up. Judicial custody mein police court approval ke bina interrogation nahi kar sakti; court necessary samjhe to permission de sakta hai. [Q40]

9. Lok Adalat, Gram Nyayalaya & Mobile Court

- Lok Adalat settlement ka key factor parties ki consent hai; source ke mutabik sitting/retired judicial officer Chairman hota hai aur usually lawyer + social worker members hote hain. Given Q41 statements mein source “none” ko correct answer batata hai. [Q41]
- Gram Nyayalayas Act, 2008: Section 11 ke source explanation mein Gram Nyayalaya civil aur criminal dono jurisdiction exercise kar sakta hai; Section 27 ke under village-level social workers conciliators panel mein aa sakte hain. [Q42]
- Mobile Court concept source Dr A.P.J. Abdul Kalam ka brainchild batata hai; first mobile court August 2007, Mewat district Haryana mein, then CJI K.G. Balakrishnan dwara inaugurated batayi gayi. [Q43]

10. Exam Traps — Disputed / Time-Sensitive Source Questions

⚠ EXAM TRAP — High Court Count / UT Jurisdiction — Date-Sensitive Items

Q10 aur Q11 source khud disputed mark karta hai: old exam-year figures/options current-reference se match nahi karte. Source current reference mein 25 High Courts batata hai. Q9 ka UT wording bhi source-specific hai; ise source note ke roop mein hi padho, silently reconcile mat karo. [Q9, Q10, Q11]

⚠ EXAM TRAP — Manipur High Court — Historical Question

Q15 2005 ke historical context mein Manipur ko own High Court na hone se link karta hai; source itself note karta hai ki Manipur High Court March 2013 mein establish hua, isliye old option current framing mein valid nahi. [Q15]

⚠ EXAM TRAP — Largest Number of Benches — Multiple Correct

Q17 source explicitly multiple-correct mark karta hai: Mumbai/Bombay aur Gauhati High Courts ko 3 benches each bataya gaya hai. Exam mein date/options ke context ko ignore mat karo. [Q17]

⚠ EXAM TRAP — Chief Justice of Chhattisgarh — Time-Sensitive Source Line

Q33 ka core historical fact Rajeev Gupta ka 2 Feb 2008 appointment hai. Source explanation ek “current Chief Justice” line bhi deta hai; wo time-sensitive statement hai, isliye historical asked fact ko priority se yaad rakho. [Q33]